

The same is true, with two exceptions, in the lower federal courts.²¹ In the first of these two cases it was held that § 1979 was not directed to instances of lawless police brutality, although the ruling was not put on "under color"

²¹ *Northwestern Fertilizing Co. v. Hyde Park*, 18 Fed. Cas. 393, No. 10,336 (C. C. N. D. Ill. 1873); *Baltimore & Ohio R. Co. v. Allen*, 17 F. 171 (C. C. W. D. Va. 1883); *Tuchman v. Welch*, 42 F. 548, and *M. Schandler Bottling Co. v. Welch*, 42 F. 561 (C. C. D. Kan. 1890); *Hemsley v. Myers*, 45 F. 283 (C. C. D. Kan. 1891); *Davenport v. Cloverport*, 72 F. 689 (D. C. D. Ky. 1896); *Fraser v. McConway & Torley Co.*, 82 F. 257 (C. C. D. Pa. 1897); *Crystal Springs Land & Water Co. v. Los Angeles*, 76 F. 148 (C. C. S. D. Cal. 1896), aff'd, 177 U. S. 169 (see *California Oil & Gas Co. v. Miller*, 96 F. 12 (C. C. S. D. Cal. 1899)); *Aultman & Taylor Co. v. Brumfield*, 102 F. 7 (C. C. N. D. Ohio 1900), app. dism'd 22 S. Ct. 938; *Wadleigh v. Newhall*, 136 F. 941 (C. C. N. D. Cal. 1905); *Farson v. City of Chicago*, 138 F. 184 (C. C. N. D. Ill. 1905); *Brickhouse v. Brooks*, 165 F. 534 (C. C. E. D. Va. 1908); *Simpson v. Geary*, 204 F. 507 (D. C. D. Ariz. 1913); *Raich v. Truax*, 219 F. 273 (D. C. D. Ariz. 1915), aff'd, 239 U. S. 33; *Marcus Brown Holding Co. v. Pollak*, 272 F. 137 (D. C. S. D. N. Y. 1920); *West v. Bliley*, 33 F. 2d 177 (D. C. E. D. Va. 1929), aff'd, 42 F. 2d 101 (C. A. 4th Cir. 1930); *Trudeau v. Barnes*, 65 F. 2d 563 (C. A. 5th Cir. 1933); *Jones v. Oklahoma City*, 78 F. 2d 860 (C. A. 10th Cir. 1935); *Mitchell v. Greenough*, 100 F. 2d 184 (C. A. 9th Cir. 1938); *Blackman v. Stone*, 101 F. 2d 500 (C. A. 7th Cir. 1939); *City of Manchester v. Leiby*, 117 F. 2d 661 (C. A. 1st Cir. 1941); *Hannan v. City of Haverhill*, 120 F. 2d 87 (C. A. 1st Cir. 1941); *Hume v. Mahan*, 1 F. Supp. 142 (D. C. E. D. Ky. 1932), rev'd, 287 U. S. 575; *Premier-Pabst Sales Co. v. McNutt*, 17 F. Supp. 708 (D. C. S. D. Ind. 1935); *Gobitis v. Minersville School Dist.*, 21 F. Supp. 581 (D. C. E. D. Pa. 1937), 24 F. Supp. 271 (1938), aff'd, 108 F. 2d 683 (C. A. 3d Cir. 1939), rev'd, 310 U. S. 586; *Connor v. Rivers*, 25 F. Supp. 937 (D. C. N. D. Ga. 1938), aff'd, 305 U. S. 576; *Ghadioli v. Delaware State Medical Society*, 28 F. Supp. 841 (D. C. D. Del. 1939); *Mills v. Board of Education*, 30 F. Supp. 245 (D. C. D. Md. 1939); *Bluford v. Canada*, 32 F. Supp. 707 (D. C. W. D. Mo. 1940), app. dism'd, 119 F. 2d 779 (C. A. 8th Cir. 1941); *Kennedy v. City of Moscow*, 39 F. Supp. 26 (D. C. D. Idaho 1941). In these cases R. S. § 1979 or the parallel jurisdictional provisions were invoked. Note that in the *Jones* and *Farson* cases, *supra*, defendant's conduct